

M/s Tirupati Cylinders Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 9 February 2021 · W.P. (C) No. 4174 of 2021 · WRIT - C No. 4174 of 2021 · **Writ disposed of on consent; respondent no. 2 to decide the excess-security refund claim in accordance with the relevant provisions within six weeks, without opinion on merits.**

HEADNOTE

On a writ seeking refund of excess security after sanctioned load was reduced from 1500 KVA to 1000 KVA, invoking Clause 4.20 of the U.P. Electricity Supply Code, 2005, the Cost Data Book dated 8 July 2019 and Section 47 of the Electricity Act, 2003, the Allahabad High Court, without expressing any opinion on merits and on the licensee's consent that the grievance would be examined, disposed of the petition directing respondent no. 2 to look into the claim and pass an appropriate order strictly in accordance with the relevant provisions, preferably within six weeks.

FACTUAL SUMMARY

The petitioners, a small-scale industry, held a 1500 KVA connection from Paschimanchal Vidyut Vitran Nigam Limited. After production and 45-day average consumption fell, the licensee reduced the load to 1000 KVA on 5 February 2020. They then claimed refund of excess security covering 45 days' estimated consumption under the Cost Data Book dated 8 July 2019, Clause 4.20 of the U.P. Electricity Supply Code, 2005 and Section 47 of the Electricity Act, 2003, with 18% interest from April 2019. The excess had not been refunded.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

refund of excess security on load reduction

HOLDING

Without expressing any opinion on merits, a writ seeking refund of excess security after sanctioned load was reduced from 1500 KVA to 1000 KVA — invoking Clause 4.20 of the U.P. Electricity Supply Code, 2005, the Cost Data Book dated 8 July 2019, and Section 47 of the Electricity Act, 2003 — was disposed of on the licensee's consent, with a direction to respondent no. 2 to look into the grievance and pass an appropriate order strictly in accordance with the relevant provisions, preferably within six weeks. ¶ 1

PRINCIPLE TAGS

UP-2005::4.20 The Court did not construe Clause 4.20 or decide whether excess security was refundable on load reduction; it remitted the refund claim to the licensee to be decided strictly in accordance with the relevant provisions. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER EXCESS SECURITY IS REFUNDABLE ON REDUCTION OF SANCTIONED LOAD UNDER CLAUSE 4.20 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 AND THE COST DATA BOOK DATED 8 JULY 2019

Court expressly declined to express any opinion on merits. ¶ 1

NOT DECIDED — ENTITLEMENT TO INTEREST AT 18% PER ANNUM ON THE ALLEGED EXCESS SECURITY FROM APRIL 2019

Claimed in the writ; not adjudicated. ¶ 1

